

23SMCV01419 23SMCV01419

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-04

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The matter is here for an FSC. The court has received the following FSC materials: (1) Plaintiff's Special Verdict; (2) Defendant's Special Verdict; (3) Joint Witness List; (4) Joint Exhibit List; (5) Joint Jury Instructions; (6) Plaintiff's Proposed Jury Instructions; (7) Defendant's Proposed Jury Instructions; (8) Joint Short Statement of the case. The court still needs: (1) Joint Deposition Chart (if depositions are to be used other than for impeachment); (2) Joint Statement of Unusual Issues (if any); (3) Joint Good Faith Trial Length Estimate. This can be readily provided by next Wednesday, one would think.

Other than that, the court believes that the case is READY FOR TRIAL. The court has also received eight motions in limine by the defense to which there is no opposition. The court can rule on those if the case is about to try.

The court will ask the parties to meet and confer further on the special verdict forms and to present the court with a red-line comparing one version to the other to the extent the parties cannot come to terms. The parties should also discuss additional stipulations to exhibits.

The court does have a problem, though. The court cannot start the trial on September 11, but it may be able to start the trial on September 14. The court will, however, need a good and firm estimate on the length. The court will be dark starting September 21, so if the case is not in the jury's hands by week's end (likely meaning Thursday) then the court would need to declare a mistrial. If the parties are confident that they can meet that deadline, the court is prepared to go forward. If not, the court will discuss the matter further with the parties. The court might also be able to see if there is another department in Santa Monica that can hear the case on September 14, and the court will discuss that with the

parties as well.

The court will defer ruling on the in limine motions until after the above discussion.